# GENERAL CONDITIONS FOR EXPORT

The acceptance of our quotation includes the acceptance of the following terms and conditions:

1. Validity

Unless previously withdrawn, our quotation is open for acceptance within the period stated therein, or when no period is stated, within ninety days only from the date thereof. Any order or orders arising from this quotation shall be subject to our confirmation in writing, or by cable/telex.

2. Documents

Illustrations, catalogues, colours, drawings, dimensions, statements of weights and measurements etc., made available by us are only meant to present a general idea of the goods to which they refer; they are approximate only and therefore not binding upon us. Except to the extent to which the same are intended to serve as instructions for use or advertisement matter, any such documents remain our property. They may not without our consent be utilized or copied, reproduced, transmitted or communicated to third parties.

3. Trade Terms

Unless otherwise agreed, the Incoterms 1980 issued by the International Chamber of Commerce, shall apply to the trade terms mentioned in our quotation, it being understood that:

a) under f.o.b. terms we shall on behalf of the purchaser and at his expense contract on usual terms for the carriage of the goods in a seagoing vessel to a port in the purchaser's country, load the goods on board the vessel at the port of shipment and obtain from the shipping company the corresponding bill of lading while the purchaser undertakes to reimburse on our first demand any and all additional expenses so incurred.

b) under c.i.f. terms we shall provide for marine insurance for the c.i.f. price during transport from warehouse to warehouse against all risks of the carriage involved in the contract on the conditions of the Institute Cargo Clauses (All Risks) provided always that the insurance against war risks and strike risks will be arranged in conformity with the Institute War Clauses and the Institute Strikes, Riots and Civil Commotions Clauses to the extent such insurance is procurable at the time of shipment according to the Institute of London Underwriters.

4. Despatch

Full forwarding instructions must be sent with the order. The times given for despatch are estimated and not binding; they have to be reckoned from the date of our written confirmation of the order or, where a letter of credit has been asked for, from the date of the bank's advice that it has been opened in conformity with our requirements. We reserve the right to despatch the goods in consignments as and when they are ready for despatch.

5. Force Majeure

In the event of the occurence of force majeure we shall be entitled to suspend delivery of the goods for the duration of the prevention or delay caused by such force majeure, without being held responsible for any damages resulting there from to the purchaser. In that case the times given for despatch shall be extended for the period of prevention or delay caused by such force majeure.

In the event of the period of prevention or delay caused by force majeure having lasted for a period exceeding twelve consecutive months, then and in that case we shall be entitled to cancel the order to the extent not yet executed without being held to any indemnity whatsoever towards the purchaser. The expression "force majeure" shall mean and include any happening or event beyond our reasonable control – whether or not foreseeable at the time of our order confirmation – in consequence of which we cannot execute or cannot reasonably be required to execute our obligations.

Such circumstances include but are not restricted to: acts of God, war, civil war, insurrection, fires, floods, strikes, epidemics, governmental regulations, freight embargoes, nonavailability of any permits, licences and/or authorizations required, defaults of our suppliers or sub-contractors.

6. Complaints and Returns

Any complaints about faulty deliveries will have to be made in writing within fourteen days after receipt of the goods by the purchaser and returned goods will not be accepted unless returned within the aforementioned period and preceeded by an advice note, giving the reason for return and the date and number of our invoice; all goods returned must be consigned insurance and carriage paid and packed in their original packing.

7. Prices

Unless otherwise agreed, invoices shall be made out on the basis of the prices in force on the day of delivery. Value added tax, so far applicable, is not included in the prices and shall be shown separately if applicable.

8. Payment

Payment has to be effected in German Marks of the Federal Republic of Germany against presentation of shipping documents on base of payment terms and periods stated in our quotation or as agreed upon by the parties.

9. Letter of Credit

Purchaser opens in our favour an irrevocable and divisible documentary letter of credit to be confirmed by a first class bank of the Federal Republic of Germany.

For the interpretation of the letter of credit the uniform customs and practice of documentary credits of the International Chamber of Commerce, Paris, are applicable in their latest version.

10. Tests

Goods manufactured by us are carefully inspected, and where practicable submitted to our standard tests at our factories before despatch. If special tests, or tests in the presence of the purchaser or his representative are required, these must be specified by the purchaser when giving the order and shall, unless otherwise agreed, be made at our factories; all costs connected with such tests will be charged extra. In the event of any delay on the part of the purchaser in attending such tests after fourteen days' notice that the goods are ready to be tested, the tests will proceed in the purchaser's absence and shall be deemed to have been made in his presence.

11. Installation

Unless expressly agreed otherwise, the installation of the goods supplied by us is not included in our quotation.

12. Warranty

We warrant to the purchaser the good quality of the goods supplied for a period of one year as from the date on which they have been put into use, but in no event for more than eighteen months as from the date of dispatch or confirmation that goods are ready for shipment, against all defects or failures which appear therein, under proper use, and arise solely from faulty materials or workmanship, it being understood that:

a) such warranty does not cover damage sustained by normal wear and tear or any damages arising in consequence of negligence or improper manipulation of the goods or parts thereof, or of improper storage in the event of the goods wholly or partly being stored by the purchaser previous to installation, use or resale to ultimate buyers;

b) such warranty shall not include any lamps, tubes, crystals, semiconductors, rectifiers, vibrators, batteries and such other component parts to which a specific manufacturer's warrant applies.

Under this warranty we shall supply to the purchaser, free of charge, replacements of such parts as have such defects as set out hereabove or, at our option, repair such parts or have repaired at our order, provided that we are informed by the purchaser in writing or by telegram within fourteen days after the defects have revealed themselves, and the defective goods have been placed at our disposal; the defective parts shall become our property as soon as they have been replaced. Our warranty obligations do not include any travelling costs.

13. Liability

Compliance with our warranty undertaking pursuant to paragraph 12 shall be considered to give full indemnification to the purchaser. Any other claim of the purchaser for compensation or action of the purchaser for dissolution of the contract shall be excluded. In consequence hereof we shall not be liable for any damages nor for any losses other than those for which we have expressly assumed liability herein and our liability shall in no event include any patent liabilities or patent indemnification nor consequential damages of any nature whatsoever.

The purchaser shall hold us harmless from all costs, damages and interests which might arise either directly or indirectly from any claim or claims of third parties in connection with the goods supplied.

14. Arbitration

All disputes arising in connection with the present contract shall be finally settled under the Rules of Conciliation and Arbitration of the International Chamber of Commerce by one or more arbitrators appointed in accordance with these Rules. Such arbitration shall be held at GENEVE, Switzerland. Swiss law will apply.

The application of the uniform laws dated 17th July, 1973 relating to international purchase of movables, as well as the conclusion of the international purchasing contracts relating to movables, is excluded.